

25PSCV04091 25PSCV04091

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-10-15

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Case Number: 25PSCV04091 Hearing Date: October 15, 2026 Dept: H

Creditors

Adjustment Bureau, Inc. v. Herrera,

Case No. 25PSCV04091

ORDER ON

DEFAULT JUDGMENT APPLICATION

Plaintiff Creditors Adjustment Bureau,

Inc.'s Application for Default Judgment is DENIED without prejudice.

Background

Plaintiff

Creditors Adjustment Bureau, Inc. ("Plaintiff") is a collection agency assigned this matter by State Compensation Insurance Fund ("Assignor"). Jose Herrera aka Jose S Herrera aka Jose Salvador Herrera aka Jose Salvado dba Herrera Home Services adba Jose Herrera Home Services ("Defendant") and Assignor entered into a written agreement wherein Assignor agreed to provide a worker's compensation policy to Defendant, bearing Policy No. 9020335-20 (covering the period of August 7, 2020 through August 7, 2021) ("Policy") and Defendant agreed to pay premiums in accordance with the terms and conditions set forth in the Policy. Defendant owes \$43,207.80 in premiums for the Policy, which he has not paid.

On

November 12, 2025, Plaintiff filed a complaint, asserting a cause of action against Defendant and Does 1-10 for Breach of Contract.

On June

1, 2026, Defendant's default was entered.

An

Order to Show Cause Re: Default Judgment is set for October 15, 2026.

Discussion

Plaintiff's

Application for Default Judgment is denied without prejudice. The following defects are noted:

1. The

instant lawsuit was filed November 12, 2025. The statute of limitations for breach of written contract is four years. (Code Civ. Proc., § 337.) The Court queries whether the lawsuit is time-barred, inasmuch as the Policy covers the time period of August 7, 2020 through August 7, 2021. The Court requests that Plaintiff provide a copy of the Policy and brief the statute of limitations issue.

2. Alexis

Inniss represents, in Paragraph 4 of her declaration, that a credit of \$398.82 was given. The Court requests that Inniss provide an explanation of this "credit" and when it was applied.

Accordingly,

the application is denied without prejudice, and Plaintiff is directed to submit a revised and complete default judgment application that addresses the aforementioned issues. Any subsequent default prove-up application must be full and complete in and of itself. The Court will not entertain piecemeal submissions.